

ς. The confirmation must not be wrung from the *cestui que trust* by distress or terror (*d*).

ζ. Where the *cestuis que trust* are a class of persons, as creditors, the sanction of the major part will not be obligatory on the rest, but the confirmation to be complete, must be the joint act of the whole body (*e*).

330, see 338; *Wood v. Downes*, 18 Ves. 120, see 123; and see *Fox v. Mackreth*, 2 B. C. C. 400.

(*d*) See *Roche v. O'Brien*, 1 B. & B. 330; *Dunbar v. Tredennick*, 2 B. & B. 317; *Crowe v. Ballard*, 2 Cox, 257.

(*e*) Sir G. Colebrooke's case, cited *Ex parte Hughes*, 6 Ves. 622; *Ex parte Lacey*, Id. 628; the cases cited, Id. 630, note (*b*). *Whelpdale v. Cookson*, cited *Campbell v. Walker*, 5 Ves. 682, has been doubted by Lord Eldon, 6 Ves. 628.